

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

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INTERNATIONAL LONGSHOREMAN’S	:	
ASSOCIATION,	:	
	:	
Complainant,	:	
	:	
v.	:	FMC Docket No.: 22-12
	:	
GATEWAY TERMINALS, LLC;	:	
CHARLESTON STEVEDORING COMPANY,	:	
LLC; PORTS AMERICA FLORIDA, INC.;	:	
CERES MARINE TERMINALS, INC.; AND	:	
SSA ATLANTIC, LLC,	:	
	:	
Respondents.	:	
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**REPLY TO COMPLAINANT’S RESPONSE TO ORDER FOR BRIEFING ON
SOVEREIGN IMMUNITY AND TO THE BRIEF OF AMICUS CURIAE**

Respondents Gateway Terminals, LLC (“Gateway”), Charleston Stevedoring Company, LLC (“CSC”), Ports America Florida, Inc. (“PA”), Ceres Marine Terminals, Inc. (“Ceres”), and SSA Atlantic, LLC (“SSA”) hereby submit a reply to the brief submitted by Complainant, the International Longshoreman’s Association (“ILA”), in response to the Order to File Briefing dated August 18, 2022 (the “Order”). This reply also responds to the Brief of Amicus Curiae filed by the Georgia Ports Authority (“GPA”).¹

I. ILA Failed to Address the Presiding Officer’s Concerns About Whether, and if so How, the Remedies Sought in the Amended Complaint Implicated Sovereign Immunity.

The Order noted that the issue of sovereign immunity “could impact the adjudication and potential remedies available in this proceeding” and requested that the parties file briefs regarding

¹ Respondents have omitted a recitation of the facts and incorporate the facts articulated in the briefing related to their Motion to Dismiss. Respondents further reiterate and incorporate into this reply the arguments asserted in their Response to Order to File Briefing.

“what role, if any, sovereign immunity jurisprudence would play in this proceeding” particularly because “it appears that political decisions made by the state ports are at issue.” ILA’s responsive brief focused exclusively on the uncontested issue of whether Respondents are “arms of the state” (which all parties and GPA agree they are not) and lacked any analysis of the impact that the relief sought in the Amended Complaint could have on the decisions and interests of the state ports, which are entitled to sovereign immunity.

As Respondents addressed in their Response to the Order, policy decisions by GPA and the South Carolina Ports Authority (“SCPA”) led to Respondents’ consolidation of individual stevedoring operations into a single-provider model. Thus, the ILA’s requested relief (i.e., effectively overturning the decision to deploy a single stevedore in each port, rather than multiple competing operations) impacts each state’s sovereign interests and policymaking directly. Neither GPA nor SCPA can be joined in this proceeding because each enjoys sovereign immunity. ILA’s initial brief failed to address this constitutional obstacle to obtaining the relief it seeks before the Commission.

II. Respondents Concur with the Conclusions of Amicus Curiae GPA.

GPA’s amicus brief provides useful contributions on the specific issue presented by the Order by a non-party potentially impacted by this proceeding. Accordingly, GPA’s request for leave to file should be granted.

GPA’s amicus brief explains that the Commission should not, and cannot, issue an order in this action that impairs GPA’s policy choices or other interests. Emphasizing GPA’s status as an arm of the state of Georgia, GPA asserts that Federal Rule of Civil Procedure 19 regarding required joinder and the policies underlying that rule are instructive here, *i.e.*, if ILA’s requested

relief could impede or impair GPA's interests, the relief should not be granted because GPA cannot be joined to this action. Respondents concur with GPA's observations in this regard.

Although SCPA did not submit a brief, it is well-settled that SCPA is immune from suit before the Commission. Accordingly, Respondents believe that the considerations articulated by GPA would apply with respect to SCPA in a similar way.

III. CONCLUSION

For the reasons set forth above, as well as in Respondents' Response to Order to File Brief and Motion to Dismiss and Reply in Support of the Motion to Dismiss, Respondents respectfully request that the Commission dismiss ILA's Amended Complaint.

Dated September 29, 2022

Respectfully submitted,



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CERTIFICATE OF SERVICE

I hereby certify that the foregoing brief was provided to Complainant's counsel of record by email on this 29th day of September 2022.

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